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LINE 6

24-CIV-01136

JUSTIN GELLER VS. FORD MOTOR COMPANY, ET AL.

JUSTIN GELLER
FORD MOTOR COMPANYROGER KIRNOS
RICHARD DALLIN SOPP

PLAINTIFF'S MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

TENTATIVE RULING:

Plaintiff Justin Geller's unopposed Motion for Attorneys' Fees, Costs and Expenses is GRANTED-IN-PART pursuant to Civil Code section 1794 and the terms of the parties' settlement agreement, as follows:

Plaintiff filed this Song-Beverly Warrant Act (Song-Beverly) action on February 27, 2024, and filed a notice of conditional settlement on June 3, 2025. Plaintiff requests a total award of \$28,059.05, consisting of \$19,858.50 in lodestar fees, a lodestar enhancement of \$5,957.55, and costs and expenses in the amount of \$2,243.00.

Reasonableness of Fees

A buyer who prevails in an action under the Song-Beverly action is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105.) Attorneys' fees in a Song-Beverly case are based upon the lodestar method. (*Reynolds, supra*, 47 Cal.App.5th at p. 1112.) California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 [internal quotations and citation omitted].) "The major factors the trial court must consider in determining an attorneys' fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney's success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on the case." (*Id.* at p. 1508 [citing *In re Marriage of Cueva* (1978) 86 Cal.App.3d 290, 296 and *Nevin v. Salk* (1975) 45 Cal.App.3d 331, 343].) "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.

Here, Plaintiff purchased a new 2019 Ford F-150 for a total sales price of \$57,302.23 (the "Subject Vehicle"), which was manufactured and/or distributed by Defendant Ford Motor Company. (Kirnos Decl., ¶4.) Plaintiff presented the Subject Vehicle for repair repeatedly during the warranty period and thereafter contacted Knight Law firm who accepted the case on a

contingency basis and filed this action on February 27, 2024. (*Id.*, at ¶¶5-8.) Following litigation, the parties entered a settlement agreement on June 12, 2025 whereby the action was resolved for \$141,234.00 and Plaintiff was agreed to be the prevailing party and entitled to attorney's fees, costs, and expenses pursuant to the Song-Beverly Act. (*Id.*, ¶¶9-13, Exh. C.)

Plaintiff requests a lodestar attorney fee award of \$19,858.50, and a lodestar multiplier of 1.3, for a total fee request in the amount of \$25,816.05. (*Id.*, ¶2, Exh. A.) Time was billed in increments of tenths of an hour, at rates ranging from \$145/hr to \$600/hr based on who was billing and for what task. (*Id.*) The rates charged are supported as reasonable by the uncontested statements of experience of the time keepers. (*Id.*, ¶¶27-28.)

As to the hourly rate, the reasonable hourly rate is the reasonable hourly rate for San Mateo County where this case is venued. “ ‘The reasonable hourly rate is that prevailing in the community for similar work.’ ” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at p. 1095].) This court may use its own experience to determine the value of attorneys' fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds, supra*, 47 Cal.App.5th at pp. 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.”] (citations omitted)). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys' fees and costs frequently during her time as a judicial officer. The Laffey matrix is another resource to determine a reasonable hourly rate. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702 [court can use Laffey Matrix for reasonable hourly rate].) The court finds that hourly rates ranging from \$145.00 to \$600.00 reasonable to prosecute a Song-Beverly case in San Mateo County. On August 18, 2026, this court approved these hourly fees in an action brought by the Knight Law Group, LLP against Ford Motor Company, *Scott v. Ford Motor Company*, case no. 24Civ06446.

As to the reasonableness of the work, this court has a responsibility to review the billing records. In *Ketchum v. Moses*, our Supreme Court explained: “In referring to ‘reasonable’ compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1132.) In *Harman v. City and County of San Francisco* (2006) 136 Cal.App.4th 1279 the court analyzed the considerations relevant to this initial lodestar determination by looking to *Hensley v. Eckerhart* (1983) 461 U.S. 424 (superseded in part by statute on other grounds), in which the court “instruct[ed] that the initial lodestar calculation should exclude ‘hours that were not reasonably expended’ “ and drew an analogy to private billing practices: “ ‘Counsel for the prevailing party should make a good-faith effort to exclude from a fee request hours that are excessive, redundant, or otherwise unnecessary, just as a lawyer in private practice ethically is obligated to exclude such hours from his fee submission. “In the private sector, ‘billing judgment’ is an important component in fee

setting. It is no less important here. Hours that are not properly billed to one's client also are not properly billed to one's adversary pursuant to statutory authority.” ‘ ‘ (*Harman v. City and County of San Francisco*, at p. 1310 [quoting *Hensley v. Eckerhart*, at p. 434].) “Counsel is not entitled to compensation for ... work merely because it was performed. Rather, it is counsel's burden “to persuade the trial court the work was reasonably necessary, both as to the particular tasks performed and the amount of time devoted to them.” (*Howell v. State Dept. of State Hospitals* (2024) 107 Cal.App.5th 143, 158–159 [internal quotations and citation omitted].)

Here, plaintiff's counsels' time entries show 48.9 hours expended for a total lodestar of \$19,858.50, recorded as daily time entries in tenth of an hour increments. (Kirnos Decl., ¶2, Ex. A.) No objections have been raised. The time expended for each task appears reasonably necessary and reasonable in amount except for the time to review the opposition, prepare a reply and appear at the hearing. Since no opposition or reply was filed, the court disallows that time of 3 hours at \$575.00 per hour. The court also strikes the time to prepare for and appear at the hearing, 1 hour at \$575.00. If defendant contests the tentative ruling, the court will consider allowing this time.

Multiplier

The court denies a request for a lodestar adjustment. The lodestar amount “ ‘may be adjusted by the court based on factors including ... (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.’ ([Citations])” (*Center for Biological Diversity v. County of San Bernardino* (2010) 185 Cal.App.4th 866, 899.) “ ‘[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.” [Citation] ‘[T]he unadorned lodestar reflects the general local hourly rate for a fee-bearing case; it does not include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider.... The adjustment to the lodestar figure, *e.g.*, to provide a fee enhancement reflecting the risk that the attorney will not receive payment if the suit does not succeed, constitutes earned compensation; unlike a windfall, it is neither unexpected nor fortuitous. Rather, it is intended to approximate market-level compensation for such services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.’ [Citation] In cases involving the enforcement of constitutional or statutory rights, “such fee enhancements may make such cases economically feasible to competent private attorneys. [Citation.] ‘[M]ost lawyers of this quality do seem to consider the prospects of success and the fee recoverable before adding to their crowded calendars a case in which payment is contingent.’ ” [Citation.] (*Ibid.*) The trial court can consider contingent risk and delay in determining the reasonable hourly rates of the attorneys and not consider it when considering a multiplier. (*California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537.) The court considers the contingent risk and delay in the hourly fee and does not find a multiplier appropriate in this case.

Attorneys' fees are accordingly awarded based upon the lodestar amount of without a multiplier.

Costs

The usual method to recover costs as a prevailing party is by filing a Memorandum of Costs pursuant to Cal. Rules of Court, rule 3.1700. Plaintiff here filed a Memorandum of Costs on June 3, 2026 which seeks \$2,596.50 in costs, consisting of \$990.00 in filing and motion fees, \$150.00 in jury fees, \$30.50 for service of process, and \$1,426.00 for “other” costs, which include \$1,420.00 for attorney services and messenger court filings and \$6.00 for minute orders.

However, Plaintiff previously filed a Memorandum of Costs on December 1, 2025, requesting an award of \$2,243.00 in costs. Plaintiff’s Notice of Motion filed June 3, 2026 requests costs in that amount. The December 1, 2025 Memorandum of Costs seeks costs consisting of \$705.00 in filing and motion fees, \$150.00 in jury fees, \$899.55 in deposition costs, \$101.00 for service of process, and \$387.45 for “other” costs, which include \$211.45 for attorney services and messenger court filings and service and \$176.00 for “SMART ADR Invoice: Mediation with Ron Akasaka (5/22/25; 5 cases).” No motion to strike or tax costs has been filed, and no objection has been raised.

Costs are accordingly awarded as requested in Plaintiff’s Notice of Motion in the amount of \$2,243.00.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 7

24-CIV-04622

MARTIN AERON ARIAS VS. BERG SENIOR SERVICES, LLC

MARTIN AERON ARIAS
BERG SENIOR SERVICES, LLCHELGA HAKIMI
ANDREW R SHALAUTA

RENEWED MOTION FOR ATTORNEYS' FEES, LITIGATION COSTS, A CLASS REPRESENTATIVE ENHANCEMENT PAYMENT, AND SETTLEMENT ADMINISTRATION COSTS

TENTATIVE RULING:

On June 23, 2026 with written order filed July 29, 2026, the court granted final approval of this class and PAGA (Private Attorney General Act) settlement of \$1,100,00.00. However, the court denied without prejudice the request for attorneys' fees, costs, settlement administer fees, and service award. The court rules upon the amended motion as follows:

Plaintiff's counsel seeks an attorney fee award of \$366,666.00 or one-third of the gross settlement amount and the court grants the request.

The court in reviewing the facts of this case finds that a one-third award is appropriate. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503 (*Lafitte*) ["33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits"]; *Chavez v. Netflix, supra*, 162 App. 4th 43, 66 fn. 11 [final fee award was 27.9% of the benefits]; see *Cotchett, Pitre & McCarthy v. Universal Paragon Corp.* (2010) 187 Cal.App.4th 1405, 1421 [noting the arbitrator found that typical contingency is 33 to 40 percent].) Plaintiff's reliance on a federal case from 2008, *Fernandez v. Victoria Secret Stores, LLC*, (C.D. Cal. Jul. 21, 2008) No. CV 06-04149 MMM SHX, 2008 WL 8150856, at *16 regarding the amount of contingency fees is not precedential authority. The benchmark in the Ninth Circuit is twenty-five (25%). (*Six (6) Mexican Workers v. Arizona Citrus Growers* (9th Cir. 1990) 904 F.2d 1301, 1311; *Lealao v. Beneficial California, Inc.* (2000) 82 Cal.App.4th 19, 24, fn. 1.) However, the court relies on California authority where the one-third is common.

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte, supra*, 1 Cal.5th at p. 503.) Plaintiff's counsel shows a lodestar of \$214,460.00 with hourly rates requested ranging from \$475.00 to \$1,020.00. (Perez Decl., ¶26.)

In reviewing the evidence submitted, the court finds that the hourly rates are reasonable for San Mateo County. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].) Counsel provide a variety of examples in the San Francisco Bay Area, including a San Mateo County case, where their hourly rate has been approved.. Counsel also cite to the Laffey index which may be used by the trial court (*Syers*
